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# Montesquieu's Case for Honor in Publius and Adams: Transposing the Society of Orders to the Commercial Republic

Luke Foster

School of Government, Hillsdale College, Washington, DC, USA

Email: [Lfoster1@hillsdale.edu](mailto:Lfoster1@hillsdale.edu)

*Montesquieu's philosophy of moderate government offers only a qualified endorsement of commercial republics. Recent scholarship has increasingly recognized the extent to which he advocated a monarchy balanced by an aristocracy. This article explicates Montesquieu's understanding of honor as a vital aristocratic motive and one more consistently favorable to liberty than mercantile self-interest. It then compares this argument to the constitutionalism of the American Federalists. Whereas Publius attempts to create a balance of powers on the basis of representing aggregates of individuals, Adams throughout his writings affirms Montesquieu's assumption that the impulse for honor creates enduring hierarchies in society, which must be explicitly accounted for in constitutional design. It concludes by suggesting that, amid today's concerns about oligarchy, inequality, and populism, Adams's realism points toward a healthier relationship between elites and people.*

## Introduction

How can a regime be constituted to provide security and liberty without becoming despotic?<sup>1</sup> This is the central question of *The Spirit of the Laws*. Montesquieu declares, “Political liberty is found only in moderate governments ... [But] any man who has power is led to abuse it ... So that one cannot abuse power, power must check power by the arrangement of things.”<sup>2</sup> Many readers therefore take Montesquieu to be a pioneer of political modernity, a Machiavellian redirecting political thought away from

<sup>1</sup> Charles Secondat, Baron de Montesquieu, *The Spirit of the Laws*, trans. Anne Cohler, Basia Miller, and Harold Stone (Cambridge, 1989), Bk XI, Ch. 4, hereafter abbreviated as *SL* and cited by book and chapter number. Montesquieu's definition of “political liberty” is subjective: “Political liberty in a citizen is that tranquility of spirit which comes from the opinion each one has of his security.” *SL* XI.6.

<sup>2</sup> *SL* V.14 elaborates on this “arrangement”: “Despite men's love of liberty, despite their hatred of violence, most peoples are subjected to this [despotic] kind of government ... In order to form a moderate government, one must combine powers, regulate them, temper them, make them act; one must give one power a ballast, so to speak, to put it in a position to resist another; this is a masterpiece of legislation that chance rarely produces and prudence is rarely allowed to produce.”

classical questions of the health of the soul and towards institutional design with his account of the separation of powers. Judith Shklar has praised the stern realism of his maxims that “even virtue has need of limits” and “great men who are moderate are rare,” seeing *SL*’s politics as aiming at preventing the worst evils rather than aspiring to the highest goods.<sup>3</sup> The resulting “liberalism of fear” limits cruelty and secures a minimally decent foundation.<sup>4</sup> Another interpretive tradition, led by Pierre Manent and Thomas Pangle, laments this lowering of the horizons as an attempt to do without virtue in politics.<sup>5</sup> Against these readings, I hold that Montesquieu retains and adapts central principles of ancient and medieval political thought. This should prompt us to reconsider how creatively the American Federalists read the man they called “the celebrated Montesquieu” in asserting that “ambition must be made to counteract ambition.”<sup>6</sup> In effect, they transposed his theory for a moderate and balanced monarchy represented by competing estates into their new federal, commercial republic. The crux of the issue is the underlying account of representation: do the elements of government represent distinct interests in society, or are they only institutional means to aggregate and channel individual wills? John Adams develops a more classical republicanism aligned with Montesquieu’s account of the British Constitution, while Hamilton and Madison as Publius opt for the individualist account of representation given the lack of a hereditary aristocracy in America. Although this transposition reflects Montesquieu’s own principle that political forms should be adapted to each people’s context, their decision to jettison corporate representation has obscured class dynamics and even the threat of oligarchy in American politics.

This article deepens our understanding of American constitutionalism by recovering a picture of Montesquieu as a thinker of the *ancien régime* whose assumptions challenge rather than confirm contemporary republicanism, drawing on the *Persian*

<sup>3</sup> *SL* IX.4, XXVIII.41.

<sup>4</sup> Judith Shklar, “The Liberalism of Fear,” in Nancy Rosenblum, ed., *Liberalism and the Moral Life* (Cambridge, MA, 1989), 21–38. See also Shklar, *Montesquieu* (Oxford, 1987); Shklar, *Ordinary Vices* (Cambridge, MA, 1984); and Shklar, “Montesquieu and the New Republicanism,” in Gisela Bock, Quentin Skinner, and Maurizio Viroli, eds., *Machiavelli and Republicanism* (Cambridge, 1993), 265–79.

<sup>5</sup> Thomas Pangle, *The Theological Basis of Liberal Modernity in Montesquieu’s Spirit of the Laws* (Chicago, 2010); and Pangle, *Montesquieu’s Philosophy of Liberalism: A Commentary on The Spirit of the Laws* (Chicago, 1973). Pierre Manent’s *City of Man* (Princeton, 1998) associates Montesquieu with an individualism born of human autonomy from nature.

<sup>6</sup> *The Federalist Papers*, ed. Clinton Rossiter (New York, 2003), #51. This inquiry builds on Richard Sher, Hugo Toudic, and Céline Spector in reconsidering the familiar links between Montesquieu, the Federalists, and the anti-Federalists. See Richard Sher, “From Troglodytes to Americans: Montesquieu and the Scottish Enlightenment on Liberty, Virtue, and Commerce,” in David Wootton, ed., *Republicanism, Liberty, and Commercial Society* (Stanford, 1994), 368–404; and Hugo Toudic and Céline Spector, “Montesquieu and *The Federalist*: A Contested Legacy at the American Founding,” *Early American Studies* 22/1 (2024), 80–104. Classic studies of Founding-era American reception of Montesquieu include Paul Merrill Spurlin, *Montesquieu in America, 1760–1801* (University, LA, 1940); and Spurlin, “Montesquieu and the American Constitution,” in Spurlin, *The French Enlightenment in America: Essays on the Times of the Founding Fathers* (Athens, GA, 1984), 86–98; Clinton Rossiter, *Seedtime of the Republic*, part III, *The Political Thought of the American Revolution* (New York, 1953); Bernard Bailyn, *The Ideological Origins of the American Revolution* (Cambridge, MA, 1967); Donald Lutz, “The Relative Influence of European Writers on Late Eighteenth-Century American Political Thought,” *American Political Science Review* 78/1 (1984), 189–97; and Jean-Claude Lamberti, “Montesquieu in America,” *European Journal of Sociology* 32/1 (1991), 197–210.

*Letters* and the *Pensées* to supplement *The Spirit of the Laws*. Although the confederated commercial republics that Montesquieu describes in SL IX.1–3 have become the dominant regime type in our world, he suggests that the prospects for liberty may be better in a moderate monarchy in which power is devolved to the aristocracy. His analysis of the political passions entails that the love of gain is an insufficient substitute for the love of honor, implying a new potential for despotism from a little-considered source. Montesquieu treats commercial society not as a distinct type of regime but as a mode that can be expressed in any moderate government. Sketching the logic of Montesquieu's account of the pursuit of gain that characterizes commerce and the pursuit of honor that constitutes monarchies reveals the striking parallels between them. The two systems share features of an invisible-hand account: manifold actors pursuing their own goals achieve a common good without intending it directly.

But in a move that surprises contemporary readers, Montesquieu holds that aristocratic honor is historically and logically prior to commerce as a check on despotism. The transition from the mixed-regime thinking of Montesquieu into the modern republicanism of Publius implies the substitution of one elite (mercantile and professional) for another (landed, martial, and aristocratic). Leo Strauss and Bernard Manin both describe how this irony arose out of the tension between the eighteenth-century doctrines of natural rights and popular sovereignty: in an effort to protect individuals from majority tyranny, popular sovereignty was combined with government by elites. These elites would be primarily distinguished by their success in enriching themselves, a motivation assumed to be shared by all, as opposed to the honor motive, which only a few feel. This combination entails a delicate paradox: that representation be in principle by population but in practice correlate significantly with class.<sup>7</sup>

Montesquieu's prescience entails that the rising merchant class will need to imitate some of the virtues of the old nobility if they are to play their role well. Montesquieu envisions more than one type of despotism: in addition to the blatant terror of one man that he associates with Persia and China, there is the soft despotism of indolence and isolation that he believes threatens contemporary European societies.<sup>8</sup> This reading clarifies Montesquieu's relative assessment of the countries of his day. He portrays *ancien régime* France, where honor still holds sway, as both temporally and normatively between the despotic imperium of Spain and the atomized polity-as-enterprise of the Netherlands.<sup>9</sup> Though England, "a nation where the republic hides under the form of

<sup>7</sup>Leo Strauss, "Liberal Education and Responsibility," *Liberalism Ancient & Modern* (Chicago, 1968), 321–45, esp. 330–33. Bernard Manin, *The Principles of Representative Government* (Cambridge, 1997), esp. "The Principle of Distinction," 94–131, and "A Democratic Aristocracy," 132–60.

<sup>8</sup>Cf. Roger Boesche, "Fearing Monarchs and Merchants: Montesquieu's Two Theories of Despotism," *Western Political Quarterly* 43/4 (1990), 741–61. Paul Rahe explicates this problem at length in *Soft Despotism, Democracy's Drift: Montesquieu, Rousseau, Tocqueville, and the Modern Project* (New Haven, 2009). Two other recent works highlight Montesquieu's ambivalence about commerce: Keegan Callanan, *Montesquieu's Liberalism and the Problem of Universal Politics* (Cambridge, 2018), 175–258; and Trevor Shelle, *Globalization and Liberalism: Montesquieu, Tocqueville, and Manent* (Notre Dame, 2020), 19–78.

<sup>9</sup>I agree with Annelien de Dijn in "Was Montesquieu a Liberal Republican?", *Review of Politics* 76 (2014), 21–41, that he was in fact a kind of "liberal monarchist."

monarchy,” has often been understood to be Montesquieu’s best actual regime, he finds some prospects for long-term liberty better in France.<sup>10</sup>

After first sketching Montesquieu’s argument for the moderating role of honor within monarchies, this article considers Montesquieu’s claim that commerce can play a role parallel to that of honor in countering despotism. The comparison raises the question: are these two forces really equivalent in strength? *SL* suggests that commerce is in a sense parasitical. To do its work, commerce requires a regime of honor to be already in place, and it cannot generate new mores of liberty to replace those of honor. It may perhaps eventually undermine them. Montesquieu’s surprisingly positive case for honor is not only of historical interest for understanding the *ancien régime* but it should move us to reflect on the human passion for distinction which tends to manifest itself in all societies. This Montesquieu is less meliorist, less liberal, and less Anglophilic than he has been seen in America.<sup>11</sup> I then draw the conclusion that Montesquieu’s concern with organizing psychic and social conflict unsettles the assumption that the Federalist Constitution simply reflects Montesquieu’s vision. In a political moment where fears of oligarchy have again come to the fore in America, raising the question whether the constitutional structures are adequate to constrain elite power, John Adams’s more literal reading of Montesquieu illuminates while Publius obscures.

### The play of honor

While Montesquieu gives neither a clear view of the best regime nor an account of objective virtue in accordance with human nature, he does describe a psychology of regimes that recalls the Platonic analogy between city and soul. Each regime has both a nature, “which makes it what it is,” and a principle, “which makes it act,” located in “the human passions that set it in motion.”<sup>12</sup> In other words, each political form acquires its distinctive content through the psychology it both depends on and fosters in turn in those who live under it. In a move reminiscent of Plato’s categorizing of regimes according to what each holds in honor, Montesquieu first names the regimes according to the good that motivates each.<sup>13</sup> Monarchy seeks honor, aristocracy seeks moderation, democracy seeks equality, and despotism seeks fear. Montesquieu grounds the stability and the success of regimes in their ability to incite the necessary kind of passion in their subjects. His theory does not simply take individuals’ preferences as given and work to align them as much as possible but recognizes that the regime shapes what its subjects desire. Montesquieu’s vision of the separation of powers is also not merely institutional, nor is it based on a unitary general will. It depends on what he calls “the

<sup>10</sup>*SL* V.19.

<sup>11</sup>Classic readings of Montesquieu as an Anglophile are F. T. H. Fletcher, *Montesquieu and English Politics 1750–1850* (London, 1939); and Peter Gay, *The Enlightenment: An Interpretation* (New York, 1969). Pangle largely follows this school of interpretation.

<sup>12</sup>*SL* III.1.

<sup>13</sup>Plato, *The Laws of Plato*, trans. Thomas Pangle (Chicago, 1980), 697a, added emphasis: “A city which is going to be secure, going to prosper, so far as is possible in human affairs, should—no, must—*make a correct allocation of public recognition and disgrace*.” *SL* III contains Montesquieu’s initial typology of regimes.

Gothic constitution,” the society of orders, in which each branch of government corresponds to an estate, as in medieval and early modern French and English political development.

Montesquieu defines monarchy as depending on a subordinate nobility, but the nobles are not merely creatures of the monarch; they retain their own power bases and thus a degree of independence.<sup>14</sup> These preeminent subjects form an ordered hierarchy and aspire to win positions of greater honor for themselves within it.<sup>15</sup> By contrast, rule by one over an undifferentiated mass is despotism.<sup>16</sup> This definition sounds like a description of the kind of polity Montesquieu happened to live in, rather than a generalizable theory of the nature of regimes. But he embraces this contingency. The “Gothic government” that happened to arise in the tribal monarchies that conquered the ruins of the Roman Empire was a mixed and balanced regime.<sup>17</sup> His verdict on this system is glowing: “The civil liberty of the people, the prerogatives of the nobility and of the clergy, and the power of the kings, were in such concert that there has never been, I believe, a government on earth as well tempered as that of each part of Europe during that time that this government continued to exist.”<sup>18</sup> Montesquieu claims that Aristotle could not have theorized what he has experienced: “The ancients, who did not know of the distribution of the three powers in the government of one alone, could not achieve a correct idea of monarchy.”<sup>19</sup> Here familiar terms from the liberal-constitutionalist account of the division of powers (“civil liberty,” “prerogatives,” and “power”) are founded upon the more alien pre-1789 idea of a society with distinct orders, comprising the one, the few, and the many (“the king,” “the nobility and the clergy,” and “the people”). In this system, each subject occupies a social role and shares a rank with others, meaning that the ruled are never entirely reduced to weak and dispersed individuals helpless before the power of the centralized state.

If society in a monarchy is complex and differentiated, it follows that monarchy’s psychological principle is the love of honor.<sup>20</sup> Honor’s nature “is to demand preferences and distinctions,” yet this cannot apply as properly to an aristocratic republic

<sup>14</sup> Montesquieu likely derives the distinction from Machiavelli, who opposes “two ways” of governing principalities: “Either by one ruler, who is helped to govern the kingdom by others, who are in reality his servants, acting as ministers through his grace and favour; or else by a ruler and barons who hold that rank by hereditary right, not through the favor of the ruler.” Machiavelli, *The Prince*, trans. Quentin Skinner (Cambridge, 1988), Ch. 4, 15.

<sup>15</sup> “No monarch, no nobility: no nobility, no monarch,” *SL* II.4, original emphasis. *SL* III.7 lists “pre-eminences, ranks, and even a hereditary nobility” as essential to monarchies. *SL* V.11 adds, “As it is in [monarchy’s] nature to have under the prince several orders dependent on the constitution, the state is more fixed, the constitution more unshakeable, and the persons of those who govern more assured.”

<sup>16</sup> “Let one not seek magnanimity in despotic states; there, the prince could not give a greatness that he himself does not have: there is no glory there.” *SL* V.12.

<sup>17</sup> *SL* XI.8.

<sup>18</sup> *SL* XI.9.

<sup>19</sup> *SL* XI.9.

<sup>20</sup> Michael Mosher’s “Monarchy’s Paradox: Honor in the Face of Sovereign Power,” in David Carrithers, Michael Mosher, and Paul Rahe, eds., *Montesquieu’s Science of Politics: Essays on The Spirit of Laws* (Lanham, 2001), 159–229, explicates Montesquieu’s view of the balance between unified sovereignty and honor-seeking subordinates.

without a monarch.<sup>21</sup> Montesquieu implies that the competition benefits from having one set above the competitors to define their relative rewards and maintain a consistent standard of what is honorable, although the nobles cannot be made and unmade by the king. This vertical orientation, fueling selfish ambition, contrasts sharply with the democratic republic's horizontal egalitarianism, in which each citizen feels himself to be a small but integral part of the whole to which he contributes wholeheartedly.<sup>22</sup> Montesquieu denies that true virtue can exist in monarchies, but honor provides its simulacrum. Honor "can inspire the finest actions; joined with the force of the laws, it can lead to the goal of government as does virtue itself."<sup>23</sup> Under its sway, "each person works for the common good, believing he works for his individual interests."<sup>24</sup>

This honor-seeking initiative on the part of the king's aristocratic subjects works in two directions at once: it both enables the king's will to be efficiently executed and checks the arbitrary exercise of his power.<sup>25</sup> Whereas despotism squanders resources in coercing unwilling subjects into complying with the sovereign's commands and then in monitoring them to ensure the commands are fulfilled, the nobles under a monarchy can police themselves by their norms of honor and shame. The goal is to foster an internalization of norms so that order does not need be imposed from without. Montesquieu prefers to task these psychological dynamics with ordering the regime and upholding its liberty rather than relying entirely on legal coercion. The laws will not enforce themselves, so the rule of law requires at least some free subjects who have so internalized its principles that they may risk their lives to see them actualized. Montesquieu illustrates his point with a case of healthy resistance within monarchy. Honor generally demands obedience to the king. But, at the risk of losing his legitimacy, "the prince should never prescribe an action that dishonors us because it would make us incapable of serving him."<sup>26</sup> The essence of the king's role is to be the arbiter of honor, so undermining honor undermines himself. This safeguard has thwarted some of the worst attempted abuses in French history, because vassals had enough independence from the Crown that they could simply refuse orders they considered beneath them. The Viscount d'Orte could refuse Charles IX's order to massacre Huguenots at Bayonne after St Bartholomew's Eve because it was dishonorable. By using this case, Montesquieu makes clear that he does not take honor to be a purely amoral shadow of social convention; at least in France it is attached to showing mercy to the innocent.<sup>27</sup>

Montesquieu describes a further institutional benefit to having a personal chain of command in which orders stem from the monarch, the source of honor, to be obeyed

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<sup>21</sup>SL III.7.

<sup>22</sup>Cf. SL V.3: "Love of equality in a democracy limits ambition to the single desire, the single happiness, of rendering greater services to one's homeland than other citizens."

<sup>23</sup>SL III.6.

<sup>24</sup>SL III.7.

<sup>25</sup>Céline Spector has captured Montesquieu's psychological assumptions in her "Honor, Interest, Virtue: The Affective Foundations of the Political in the *Spirit of the Laws*, in Rebecca Kingston, ed., *Montesquieu and His Legacy* (New York, 2009), 49–79.

<sup>26</sup>SL IV.2.

<sup>27</sup>Here I diverge from Christopher Brooke's more cynical reading in "Arsehole Aristocracy (or: Montesquieu on Honour, Revisited)," *European Journal of Political Theory* 17/4 (2018), 391–410. I owe this point to conversation with Jack Rakove.

by honor-seeking subjects. Because even delegated powers within the state are wielded personally, monarchical governance has salutary delays that create occasions for reflection and contestation: “What would have become of the finest monarchy in the world if the magistrates, by their slowness, their complaints, and their prayers, had not checked the course of even the virtues of its kings?”<sup>28</sup> The logic of possessiveness means that these offices, once obtained, are jealously defended. *SL* V.11 invokes Cicero’s theory of the Roman tribunate and compares the nobles in a well-ordered monarchy to the tribunes. Of course, these were plebeian in origin, but the parallel is that they functioned as “intermediate dependent powers” meditating between the rulers and the ruled, tempering the conflict of the orders and mixing the regime. Instead of reform coming through revolutionary violence, “temperings are proposed, agreements are reached, corrections are made; the laws become vigorous again and make themselves heard.”<sup>29</sup> Through these extralegal mores, law is upheld, and through these individual lusts for honor, something like concern for the public weal arises.<sup>30</sup>

### ***Doux commerce* as honor’s understudy**

Montesquieu’s reflections on whether commerce can protect liberty pre-date his mature pronouncements in *The Spirit of the Laws* by almost three decades. Early in the *Persian Letters*, Mirza asks Uzbek to explain how he understands justice.<sup>31</sup> En route to Europe, Uzbek responds with a parable in a series of letters. His prefatory remark is that “there are certain truths for which it is not enough to be persuaded, but which one must also be made to feel. Such are the truths of morality.”<sup>32</sup> He illustrates his point by describing a *petit peuple*, the “Troglodytes,” who knew “no principles of equity or justice” and were subjected to a harsh, foreign king.<sup>33</sup> After successfully revolting against him, they opted to have no common government but a radically individualist society, in which “each would look solely to his own interests, without consulting those of others.”<sup>34</sup> This commercial-sounding maxim gives rise to the worst crimes: murder, rape, and theft. Even in their subsistence economy, the Troglodytes price gouge mercilessly in business deals. Soon they suffer from a deadly plague, and the only doctor capable of curing their disease knows from bitter experience that the Troglodytes will not pay him for saving them, so he condemns them: “You do not deserve to occupy a place on earth, because you have no humanity, and the rules of equity are to you unknown.”<sup>35</sup>

The story of the Troglodytes then shifts from parable against greed to pastoral idyll. The surviving remnant give the nation rebirth, and they “worked with a common

<sup>28</sup>*SL* V.10.

<sup>29</sup>*SL* V.11.

<sup>30</sup>Spector, “Honor, Interest, Virtue,” 65, argues that “the ambition that animates men is counterbalanced by the principles that regulate the desire for reputation; pride is tempered by deference and consideration.”

<sup>31</sup>Charles Secondat, Baron de Montesquieu, *Persian Letters*, ed. Stuart Warner, trans. Stuart Warner and Stéphane Doaurd (South Bend, 2017), #10.

<sup>32</sup>*Ibid.*, #11.

<sup>33</sup>*Ibid.*

<sup>34</sup>*Ibid.*

<sup>35</sup>*Ibid.*

solicitude for the common interest,” and “led a happy and tranquil life” characterized by a herding economy, reverence for marriage and family life, and deep religious piety.<sup>36</sup> They were content because “Nature provided for their desires no less than their needs.”<sup>37</sup> They gave presents rather than sought their own advantage, and “regarded themselves as a single family.”<sup>38</sup> Here private property is unknown. Although without aggressive designs on their neighbors, the Troglodytes can show great solidarity in a defensive war, giving their lives for each other eagerly. Having sketched this virtuous classical republic, Montesquieu suggests that it requires a small population and territory. Uzbek goes on to say that the Troglodytes decided to elect a king, “since the people grew larger every day.”<sup>39</sup> The most just man among them, elected, laments they are relinquishing freedom to become subjects: “Having no chief, you have to be virtuous in spite of yourselves ... you prefer to submit to a prince and obey his laws, which are less rigid than your morals.” The formal state apparatus of monarchy allows for cooperation without personal virtue; the king-elect warns of “ambition,” “riches,” and “unmanly voluptuousness” in the new regime. Commerce and monarchy go together; self-interest may replace virtue, but it is a lawful regime with real prosperity, not the anarchy that once destroyed the Troglodytes.

Montesquieu ends the published story there, without indicating whether the Troglodytes benefited from exchanging a pastoral republic for a commercial monarchy. But the *Pensées* extend the story. The first, reluctant king died of grief and was mourned. In an interim regime, the people substitute imitation of the king for their former personal virtue: “Since you did not want to govern us by your laws, we will conduct ourselves by your examples.”<sup>40</sup> Only during the second king’s reign do the Troglodytes collectively decide to “establish commerce and the arts.” This king, too, warns them about debasing themselves for wealth, but one of the assembly replies that “education” is “the basis on which your people’s virtue is founded ... Change that education, and whoever was not bold enough to be a criminal will soon blush at being virtuous.” This Troglodyte points to the possibility of a kind of moderate, commercial virtue, reinforced by the right social practices that can “stigmatize both avarice and prodigality.” The king’s reply affirms this possibility, but also adds a warning: as king, he must be distinguished according to whatever is praiseworthy in the realm. If the people continue to praise virtue, they can respect him for being preeminent in virtue. But if they come to value money, the king will have to distinguish himself by creating an oppressive system of taxation. His positive promise is, “If you are virtuous, I will be; if I am virtuous, you will be.”

The Troglodytes’ example suggests that neither a society of pure self-interest—the way of life of the first Troglodytes, who effectively die of greed—nor a society of

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<sup>36</sup>Ibid., #12.

<sup>37</sup>Ibid.

<sup>38</sup>Ibid.

<sup>39</sup>Ibid., #14.

<sup>40</sup>Charles Secondat, Baron de Montesquieu, *My Thoughts*, trans. and ed. Henry Clark (Indianapolis, 2012), #1616.

pastoral innocence and collective property offers a durable recipe for happiness.<sup>41</sup> While erecting a monarchy yields clear gains in power and comfort, the prospect is bittersweet for the Troglodytes, since it may involve giving up on the pursuit of personal virtue. Ryan Hanley observes that Montesquieu's parable contains an invitation to choose. At the time of the *Persian Letters*, the collapse of John Law's system of public finance has made possible either a renewed commercial ethic or a reinforcement of royal despotism, so that the French "stand in the same precarious state as the Troglodytes at the moment of the election of their king."<sup>42</sup> Commerce can be compatible with liberty if political distinction is still accorded to virtue, but it will become a new avenue to despotism if wealth is the only thing honored. Montesquieu seems to have thought that the most despotic aspect of Louis XV was his endorsement of Law's system, inflaming greed in the investors by playing on their imaginations.<sup>43</sup> Montesquieu's own prescription seems to be closest to that of the Troglodyte king: the right education and social mores can attribute honor correctly, preventing wealth from corrupting the people and even permitting commerce to support good government.<sup>44</sup>

*The Spirit of the Laws* develops this Troglodyte thesis. Despotic regimes are incompatible with commerce; the despot's whims make property vulnerable and cripple capital investment, as SL V.13 and XX.4 make clear. But all moderate regimes can engage in commerce to some degree, even as the acquisitive, restless psychology of the pursuit of wealth and the inequalities it produces pose potential threats to all three: monarchy, aristocracy, and democracy. Montesquieu distinguishes two different forms of commerce—economy commerce, which befits a democratic republic, and luxury commerce, appropriate to modern monarchies.<sup>45</sup> Commerce apparently can cultivate self-restraint in a republic for a time, but it risks becoming a victim of its own success.<sup>46</sup> The decisive factor is whether the whole population can be

<sup>41</sup>Diana Schaub, in *Erotic Liberalism: Women and Revolution in The Persian Letters* (Lanham, 1995), 38, highlights the pregnant fragility of the Troglodyte situation: "The hope for a virtuous monarchy rests on the reciprocal virtue of king and people ... a misstep by either side would initiate a downward spiral."

<sup>42</sup>Ryan Hanley, "The Political Economy of the *Persian Letters*, or, 'Self-Interest Wrongly Understood, in Three Lessons,'" in Constantine Vassiliou, Jeffrey Church, and Alin Fumurescu, eds., *The Spirit of Montesquieu's Persian Letters* (Lanham, 2023), 125–38, at 135.

<sup>43</sup>On Montesquieu on the evils of Law's system see Constantine Vassiliou, "Le système de John Law' and the Spirit of Modern Despotism in the Political Thought of Montesquieu," *Lumen* 38 (2019), 161–78; Constantine Vassiliou and Emily Nacol, "The Plague of High Finance in Montesquieu's *Persian Letters*, in Vassiliou, Church, and Fumurescu, *The Spirit of Montesquieu's Persian Letters*, 103–24; and Constantine Vassiliou, *Moderate Liberalism and the Scottish Enlightenment: Montesquieu, Hume, Smith, and Ferguson* (Edinburgh, 2023), 25–49. For the link between debt and political centralization in the *ancien régime* see Michael Sonenscher, *Before the Deluge: Public Debt, Inequality, and the Intellectual Origins of the French Revolution* (Princeton, 2007).

<sup>44</sup>My reading of the tale of the Troglodytes draws on Vassiliou's in *Moderate Liberalism and the Scottish Enlightenment*.

<sup>45</sup>Commerce seems to be most in tension with aristocratic republics.

<sup>46</sup>"The spirit of commerce brings with it the spirit of frugality, economy, moderation, work, wisdom, tranquility, order, and rule. Thus, as long as this spirit continues to exist, the wealth it produces has no bad effect. The ill comes when an excess of wealth destroys the spirit of commerce; one sees the sudden rise of the disorders of inequality which had not made themselves felt before." SL V.6.

energized for production without being inflamed for consumption. Montesquieu elaborates the distinction in *SL XX.4*, where he says that “in government by one alone, [commerce] is ordinarily founded on luxury,” because the nobility consumes luxury goods to demonstrate their status, whereas “in government by many, it is more often founded on economy,” because popular participation in commerce instills habits of frugality.

Through luxury commerce, the nobility’s quest for status becomes socially beneficial. Montesquieu’s France had a hereditary aristocracy, but since aristocratic privileges were viewed as offices of the state, many, especially those of the *noblesse de robe*, could be purchased from the Crown, attached as they were to functions like tax collection or postmaster-generalcy. In 1789, on the eve of the Revolution, two-thirds of noble titles had been created in the past two hundred years and fully one-quarter between 1700 and 1789.<sup>47</sup> Montesquieu commends the flexibility of this system because it allowed new money gained through commerce to join the quest for honor: “When nobility can be acquired with silver, it greatly encourages traders in a position to attain it.”<sup>48</sup> This attempt to reconcile the virtues of apparently competing ways of life is typical of Montesquieu’s nuance. Paul Cheney characterizes Montesquieu’s view of commerce as that it can bring “compensatory virtues” capable of reinforcing “moderation and tranquility” in politics.<sup>49</sup> But commerce’s own tendencies to excess must be checked by prudent political and social measures. In democratic republics, “the key to maintaining the spirit of commerce was first to ensure that the poor *can* work, and second that even the comparatively well off *must* work by subjecting them to egalitarian inheritance practices.”<sup>50</sup> In monarchies, the powerful must be prevented from sapping commercial dynamism with their privileges. *SL XX.19–20* condemns gaming the tax system to subsidize favored enterprises and the granting of inefficient monopolies. And because “it is against the spirit of monarchy for the nobility to engage in commerce,” Montesquieu attributes the erosion of the British Crown in part to the aristocracy’s entry into trade.<sup>51</sup> Overall, he hoped to see a delicate, one-sided osmosis in French society: for rising merchants to assimilate to the nobility without the nobles becoming more like them. Cheney portrays this as a virtuous cycle in which economic motives are harnessed to the nobler passion of seeking honor, while still retaining the social benefits and wealth creation of commercial productivity.<sup>52</sup> Montesquieu seems to be describing this ideal version of French society when he refers to a “lively, pleasant, playful” nation with “a

<sup>47</sup> See Guy Chaussinand-Nogaret, *The French Nobility in the Eighteenth Century* (Cambridge, 1985), 30.

<sup>48</sup> *SL XX.22*.

<sup>49</sup> Paul Cheney, “Political Economy,” in Sharon Krause and Keegan Callanan, eds., *The Cambridge Companion to Montesquieu* (Cambridge, 2023), 216–31.

<sup>50</sup> *Ibid.*, 228, original emphasis.

<sup>51</sup> *SL XX.21*. See also *SL VIII.9*, where he says, “The English nobility was buried with Charles I in the debris of the throne.”

<sup>52</sup> “Once the rich commoner acceded to noble status, thereby renouncing trade, he would then begin to dissipate his fortune in military commissions and other services to the state, as well as ostentatious consumption—all in search of the ‘honor’ that is the motive force of monarchical societies. This process led to the recycling of elites and a productive sort of emulation within and between them.” Cheney, “Political Economy,” 227.

certain point of honor” in *SL* XIX.5: the bourgeois virtues oriented to producing higher goods.<sup>53</sup>

This vision of French political economy explains why Montesquieu believes that luxury commerce conduces to political harmony and liberty in a monarchy. In aiming to reconcile opposed interests between the different orders of the state and within the nobility, it resembles the classical republican theory of the mixed regime. Yet since selfish motives suffice, it also shares a defining feature of a liberal, Mandevillian theory of channeling private greed towards the common wealth.<sup>54</sup> Montesquieu does not sit comfortably within the liberal tradition because of his insistence on archaic aristocratic mores, even as he acknowledges that commerce has value and that its psychology resembles that of honor. In XIX.27, during his discussion of England’s freedom, Montesquieu identifies an “ardor for enriching and distinguishing oneself” in this quintessentially commercial society. Wealth, like honor, can apparently also establish a hierarchy among subjects, resist leveling, and create scope for individual initiative. Spector addresses this possibility, asking whether Shklar and others have been right to consider Montesquieu a father of liberalism.<sup>55</sup> Here he decisively sides with the moderns, even though he maintains a classical attention to the health of the soul.<sup>56</sup> Commerce has gone beyond Christianity to cause a further epochal change and render older restraints on the passions less necessary by harmonizing interest.<sup>57</sup>

Whereas the first three parts of *SL* discuss honor almost entirely in terms of its domestic effects within a monarchical regime, Books XX and XXI introduce commerce as an international force, encompassing the globe and blurring boundaries between states. Commerce increases contact between peoples and thus tolerance for different customs; it renders trading nations more mutually dependent and thus makes war self-defeating.<sup>58</sup> Once assets are mobile, wealth can weaken despotic regimes by exiting them, obliging princes to curb their greed. For Spector, the interdependency that exchange fosters is “favourable not just to prosperity, but to peace and to political liberty.”<sup>59</sup> Robert Howse adds that commerce cultivates international reciprocity because it fosters “dependency on others for meeting one’s natural human needs—the needs based in comfortable and secure self-preservation.”<sup>60</sup>

But the beneficial effect of international commerce that most directly serves the domestic political end of moderate government is an accidental result of a financial

<sup>53</sup>Cheney describes the institutional and social landscape of the eighteenth-century French economy in *Revolutionary Commerce: Globalization and the French Economy* (Cambridge, MA, 2010).

<sup>54</sup>See Bernard de Mandeville’s *The Fable of the Bees or Private Vices, Publick Benefits*, ed. F. B. Kaye, 2 vols. (Indianapolis, 1988).

<sup>55</sup>Céline Spector, “Was Montesquieu a Liberal?”, in Raf Geenans and Helena Rosenblatt, eds., *French Liberalism from Montesquieu to the Present Day* (Cambridge, 2012), 57–72.

<sup>56</sup>For Spector, “Was Montesquieu a Liberal?”, 65, Montesquieu portrays “man as a being of beliefs and passions,” whose “ways of thinking and of acting” “form the fabric of his liberty.”

<sup>57</sup>Shklar, *Ordinary Vices*, 27, writes that Montesquieu “really believed that ‘knowledge makes men gentle,’ just as ignorance hardens us. Not the primitive but the over-civilized may recover from cruelty after all.”

<sup>58</sup>*SL* XX.1, 2.

<sup>59</sup>Spector, “Was Montesquieu a Liberal?”, 67.

<sup>60</sup>Robert Howse, “Montesquieu on Commerce, Conquest, War, and Peace,” *Brooklyn Journal of International Law* 31/3 (2006), 693–708, at 707.

innovation. *SL XXI.20* focuses on the development of letters of exchange during the Middle Ages by Jewish merchants fleeing royal oppression and expropriation.<sup>61</sup> Once real wealth became fungible, convertible into symbolic value recognizable in other states, “commerce was able to avoid violence and maintain itself everywhere, for the richest trader had only invisible goods, which could be sent everywhere and leave no trace anywhere.” This taught states the lesson that arbitrary abuses of power were self-defeating, for “only goodness of government brings prosperity.” Catherine Larrère reads this story as of a piece with the “decentering” of the state from its authoritative position in Books I–VIII to the peripheral and even negative role it plays in XX–XXII, and in the later books Montesquieu does often substitute peoples for states as his units of analysis.<sup>62</sup> Howse links this move to Montesquieu’s advocacy of confederations as a means of combining the liberty of small republics with the security of large monarchies in IX.1–3. He claims that Montesquieu is suggesting that this commerce fosters cosmopolitan norms and makes transnational sovereignty in a republican federation increasingly possible and desirable.<sup>63</sup> Although Montesquieu does prescribe relationships of mutual dependency as the best check on despotic power, because the ruler truly relies on his vassal, the features of this hierarchical honor-based reciprocity do not entirely translate to the more egalitarian, transient, and transactional reciprocity of the commercial market. Being too dedicated to peace and comfort risks introducing new threats of despotism, as the story of the Troglodytes indicates.

### The balance sheet: commerce versus honor

Montesquieu makes clear that commerce is in certain key respects a less valuable motivating passion than honor. While commerce gentles international affairs, it does not penetrate deeply enough into the soul to be truly the principle of a regime. In *SL XX.1*, Montesquieu acknowledges the justice of Plato’s claim that “commerce corrupts pure mores,” saying that it does unleash disordered appetites in the individual, but also asserts that at the level of a whole society commerce “polishes and softens barbarous mores.” Yet softness can be excessive. While commerce’s beneficial effects operate over vast distances and over the long run, its transactionalism can dissolve friendships and erode decency. Montesquieu points to the case of Holland, where the commercial spirit is ubiquitous: “If the spirit of commerce unites nations, it does not unite individuals.”<sup>64</sup> Whereas Howse equates the international amity commerce brings to interpersonal friendship, Larrère acknowledges that Montesquieu’s argument addresses both “*the universal force of commerce making for dispersion*” and “*the local*

<sup>61</sup>Francesca Trivellato investigates the historicity of this legend of the origin of letters of exchange in *The Promise and Peril of Credit: What a Forgotten Legend about Jews and Finance Tells Us about the Making of European Commercial Society* (Princeton, 2019).

<sup>62</sup>Catherine Larrère, “Montesquieu on Economics and Commerce,” in Carrithers, Mosher, and Rahe, *Montesquieu’s Science of Politics*, 335–75. *SL XXI.5* describes “the history of commerce” as “communication among peoples.”

<sup>63</sup>“Commerce depends on knowing *and* trusting the other. The grounds for keeping peoples apart become questionable if such trust is possible.” Howse, “Montesquieu on Commerce,” 707, original emphasis.

<sup>64</sup>*SL XX.2*.

attachments of men.”<sup>65</sup> To strengthen those local attachments, Montesquieu repeatedly relates his praises of economic growth to the improved conditions it brings about for the poor: while commerce does make rich and poor rise together, it does so invisibly and the observer who otherwise sees only inequality needs reminding by a trained analyst that total wealth is growing.

But commerce remains too individual to cultivate unity. Spector rightly concludes that the “liberal interpretation” of Montesquieu “cannot account for the formation of social ties ... neither the cohesion of society nor the refinement of customs stems from instrumental rationality” as practiced in the marketplace.<sup>66</sup> And even the safety valve of letters of exchange cannot itself create moderate government but can only reward it. Capital can only flow away from despotic regimes if a less despotic government already exists elsewhere. Commerce thus can reinforce freedom but not create it. For Albert Hirschman, Montesquieu not only represents the progenitor of the *doux-commerce* thesis, but also is one of the first articulators of the “self-undermining thesis.”<sup>67</sup> It seems that on this view the crucial task of refining customs, fostering social cohesion, and guarding against absolute power in a large, modern state must fall to the principle of honor.

*The Spirit of the Laws* therefore repeatedly emphasizes the role of the social apparatus of rank, distinction, and birth in fostering honor. In *SL* V.9, Montesquieu says that the laws of a monarchy “must work to sustain that nobility for whom honor is, so to speak, both child and father” and to “render it hereditary.” There he also says that “the laws must favor all the commerce that the constitution of this government can allow,” implying that commerce can be carried to excess. In Montesquieu’s typology of actually existing regimes, Holland represents a characteristic excess of commerce, and Spain a characteristic excess of monarchy. Each is disordered in its own way: the Dutch lack social bonds, and the Spanish have succumbed to despotism. England and France occupy the middle ground. If Montesquieu’s comments on England were uniformly positive, that would imply an endorsement of commercial society. But the portrait of England is ambivalent. *SL* XI.6 describes an executive monarchy with a real legislative veto, both features of the traditional English Constitution that fell into disuse as the office of the prime minister grew in prominence after the Hanoverian succession thirty years before the publication of *The Spirit of the Laws*, meaning that the England praised is a carefully crafted construct. And both XI.6 and the account of English mores in XIX.27 include serious warnings against the hegemony of commerce alongside their praise of liberty. Despite suggesting that in England commerce may reward true excellence—“Men would scarcely be judged there by frivolous talents or attributes, but by real qualities, and of these there are only two, wealth and personal merit”—XIX.27 concludes with a description of the English as, like the Dutch,

<sup>65</sup> Larrère, “Montesquieu on Economics and Commerce,” 368, original emphasis.

<sup>66</sup> Spector, “Was Montesquieu a Liberal?,” 72.

<sup>67</sup> Albert Hirschman, “Rival Views of Market Society,” in *The Essential Hirschman*, ed. Jeremy Adelman (Princeton, 2013), 198–226, identifies four categories of classic analyses of the rise of commercial society, attributing both of the first two to Montesquieu: the *doux-commerce* thesis, the self-destruction thesis, the feudal-blessings thesis, and the feudal-shackles thesis.

“a withdrawn people, each of whom thought alone.” Here it seems that the mercenary tutor of commerce has already done irrevocable damage as a social solvent.<sup>68</sup>

Montesquieu therefore teaches that the French Constitution of his day, with its venality and purchased offices, has a better chance than the British one of developing the balance between seeking glory and seeking wealth that a modern regime requires to preserve liberty. Spector’s verdict is that English social arrangements do not constitute “a model to be universalized,” and Sharon Krause dubs “the security of English liberties uncertain” because of “the increasingly undifferentiated quality of English society and the predominance of material interest and irreverence in English character.”<sup>69</sup> After the Revolution’s acceleration of the centralizing policies of the monarchy that had long preceded 1789, it would, of course, be harder to argue that the French nobility could play a crucial mediating role between the one and the many to preserve local liberty.<sup>70</sup> But Montesquieu’s analysis of honor cannot be confined to the bygone world of the *ancien régime*. Montesquieu was himself aware of the contingency of the institutions he defended, and the creative reading his works received from the American Federalists brought his insights into the era of popular sovereignty.

### American applications of Montesquieu

Montesquieu’s teaching on honor is addressed to commercial societies that seek freedom. Many polities—not least the United States—understand themselves this way today, aspiring to preserve both wealth and liberty. Boesche’s account captures one of the structuring dualities of *The Spirit of the Laws*: Montesquieu feared the blatant despotism that a monarchy could become through imperial aggression, but he also feared the soft, enervating despotism that would overtake a society devoid of courage, loyal to nothing but moneymaking.<sup>71</sup> At first Montesquieu calls fear the principle of despotism, but he then says that under despotism “one can decide to act only in anticipation of the comforts of life.”<sup>72</sup> Fear is a frontal assault on freedom, but greed subverts it, leaving subjects unwilling to risk their lives and property to defend it. Dominance by a central power, as long as its actions were sufficiently predictable, could actually be attractive to merchants. From this perspective, commerce is not just deficient as compared with honor, but it may actually come to serve despotism. This balance sheet

<sup>68</sup>Paul Rahe, in *Montesquieu and the Logic of Liberty: War, Religion, Commerce, Climate, Terrain, Technology, Uneasiness of Mind, the Spirit of Political Vigilance, and the Foundations of the Modern Republic* (New Haven, 2009), 190, argues that Montesquieu foresaw that “to the extent that the spirit of commerce permeates a monarchical society and propagates within it the norms and expectations of the marketplace, it will subvert its principle.”

<sup>69</sup>Spector, “Was Montesquieu a Liberal?”, 72. Sharon Krause, “The Spirit of Separate Powers in Montesquieu,” *Review of Politics* 62/2 (2000), 231–65, at 263.

<sup>70</sup>Nevertheless, Annelien De Dijn, *French Political Thought from Montesquieu to Tocqueville: Liberty in a Levelled Society?* (Cambridge, 2008), 11–68, describes the “aristocratic liberals” who continued to make this case.

<sup>71</sup>Boesche, “Fearing Monarchs and Merchants,” 759, concludes, “Montesquieu was beginning to depict a world in which subjects are tied to their servitude, not because of violence, but because such servitude is pleasing.”

<sup>72</sup>SL V.17, 18.

of commerce's assets and liabilities ought to prompt consideration of the consequences of honor's weakness in modern regimes.

Although Montesquieu's account of the British separation of powers presupposes corporate representation and the honor motive, the American Framers transposed his theory to represent an aggregation of individuals channeling preferences through a complex superstructure of institutions. In a letter on the weakness of the Articles of Confederation, George Washington acknowledges that "Philosophers and wise men" have asked "whether foreign Commerce is of real advantage to any Country" because of "the luxury, effeminacy, and corruptions" it brings, even as he says that America cannot but be commercial.<sup>73</sup> Several of the key Federalist protagonists at the Constitutional Convention entertained Montesquieuan ideas of compensating for the destructive effects of mere commercial self-interest with the honor motive.<sup>74</sup> Madison, in his essay on the "Vices of the Political System of the United States," makes the second great desideratum for good government (after the prevention of factional tyranny) "such a process of elections as will most certainly extract from the mass of the Society the purest and noblest characters which it contains."<sup>75</sup> Having identified the three key motivations of candidates for office as "ambition," "personal interest," and the "public good," Madison indicates that the last is too weak on its own, suggesting that the remedy might involve channeling ambition toward the public good. In his 2 June 1787 speech against a salary for the president, Benjamin Franklin adduces the sale of offices in France as evidence that "that the pleasure of doing good & serving their Country and the respect such conduct entitles them to, are sufficient motives with some minds to give up a great portion of their time to the public, without the mean inducement of pecuniary satisfaction."<sup>76</sup> In other words, not only do some ambitious, wealthy Frenchmen not expect to get rich from public office, but they actually give up their earned wealth in order to secure office. This echoes Montesquieu's argument for the sale of offices as fostering a virtuous fusion of commercial and aristocratic motivations.

But the three different authors of the *Federalist Papers* seem to have agreed to put aside Montesquieuan considerations about an explicit role for class-based honor in politics when they made their case to the voters of New York for "reconciling the

<sup>73</sup>"George Washington to James Warren, 7. Oct. 1785," in *The Writings of George Washington from the Original Manuscript Sources, 1745–1799*, ed. John C. Fitzpatrick, 39 vols. (Washington, DC, 1931–44), 28: 289–91.

<sup>74</sup>The meaning of "Federalist" shifted between the period of the Constitutional ratification debates in 1787–8 from someone in favor of ratification without amendment, as opposed to the anti-Federalists, and the first Washington administration (1789–93) when it came to designate a pro-administration, centralizing political party opposed to the Democratic Republicans. This article uses the term in the former sense and groups Madison, Hamilton, and Jay together as Publius, even though Hamilton and Madison would later be leaders of the Federalist and Democratic Republican Parties respectively.

<sup>75</sup>James Madison, "Vices of the Political System of the United States" (April 1787), in *The Papers of James Madison*, ed. William T. Hutchinson et al., vols. 1–10 (Chicago and London, 1962–77), vols. 11–(Charlottesville, 1977–), 9: 348–57.

<sup>76</sup>Benjamin Franklin, "Saturday, June 2, 1787," in Gaillard Hund and James Brown Scott, eds., *The Debates in the Federal Convention of 1787, which framed the Constitution of the United States of America, Reported by James Madison, a Delegate from the state of Virginia* (Oxford, 1920).

advantages of monarchy with those of republicanism.”<sup>77</sup> In *Federalist* #35 on the federal tax power, Hamilton dismisses any suggestion of explicit representation of economic interests or professions in Congress, that “the idea of an actual representation of all classes of the people by persons of each class is altogether visionary.” Hamilton goes on to identify three economic elements as politically relevant: commerce, the landed interest, and the learned professions. The first in effect will form a unified bloc despite its many internal divisions because “artisans and manufacturers will commonly be disposed to bestow their votes upon merchants.”<sup>78</sup> Tradesmen will lack ambition to hold office themselves, conscious that “their habits in life have not been such as to give them those acquired endowments” necessary for legislative rhetoric and deliberation.<sup>79</sup> The second group, comprising landholders “from the wealthiest landlord to the poorest tenant,” will also share a common interest, particularly in low property taxes, and so “their votes will fall upon those in whom they have the most confidence.”<sup>80</sup> The third, and perhaps most interesting, element consists of lawyers, clergymen, and doctors. Hamilton thinks that they, by contrast with the other two, “truly form no distinct interest in society,” and that they will “feel a neutrality between the different branches of industry” and so “be likely to prove an impartial arbiter between them.”<sup>81</sup> Implicitly, then, the representatives whom #10 says elections will elevate to “refine and enlarge the public views” will largely be drawn from the learned professions. Their education and their lack of economic bias are meant to ensure superior ability to govern.

Later papers on the Senate and the presidency as devices to elevate “characters preeminent for ability and virtue” do nuance this optimistic view of class dynamics, conceding that one of the chief disadvantages of unstable and inconsistent legislation is “the unreasonable advantage it gives to the sagacious, the enterprising and the moneyed few over the industrious and uninformed mass of the people.”<sup>82</sup> Here the mercantile class comes in for particular suspicion that is not applied to landowners or to liberally educated professionals. But Publius views the landed interest not as a body with a collective political duty but as an economic interest concerned with the cost of land and its productivity. American landowners represent neither the noble’s passion for honor which can resist despotism from above nor the merchant’s enervating acquiescence to it from below.

Yet honor is present in the *Federalist*; Publius, of course, builds on the achievement of men who pledged “their lives, their fortunes, and their sacred honor.”<sup>83</sup> Publius ascribes honor not to a particular order or class of society, but to office holders or office

<sup>77</sup> *Federalist Papers*, #9.

<sup>78</sup> *Federalist Papers*, #35.

<sup>79</sup> *Federalist Papers*, #35.

<sup>80</sup> *Federalist Papers*, #35.

<sup>81</sup> *Federalist Papers*, #35.

<sup>82</sup> *Federalist Papers*, #68, #62.

<sup>83</sup> Thomas Jefferson, “The Declaration of Independence,” in *The Portable Thomas Jefferson*, ed. Merrill D. Peterson (New York, 1977), 241. Paul Rahe has summarized the Founders’ understanding of glory in “Fame, Founders, and the Idea of Founding in the Eighteenth Century,” in Peter McNamara, ed., *The Noblest Minds: Fame, Honor, and the American Founding* (Lanham, 1999), 3–38.

seekers.<sup>84</sup> Madison's claim in #51 that "ambition must be made to counteract ambition" concerns the love of glory in government officials. The way to prevent concentration of power in any one branch "consists in giving to those who administer each department the *necessary* constitutional means and *personal motives* to resist encroachments of the others" (#51, added emphasis). A judge, senator, or president lacking in the desire for honor would actually be incapable of fulfilling the office well. But in the *Federalist*, unlike in Montesquieu, the sovereign who is capable of bestowing honor is the people, rather than the monarch. Hamilton advocates for presidential executive power as efficacious, not as a *fons honorum*: "Energy in the executive is a leading character in the definition of good government."<sup>85</sup> Arguing for the possibility of reelection, #71 says, "It is a general principle of human nature that a man will be interested in whatever he possesses, in proportion to the firmness or precariousness of the tenure by which he holds it ... This remark is not less applicable to a political privilege, or honor, or trust, than to any article of ordinary property." The president should take his office seriously and not exploit his position for private gain because he desires honor from the people. America also strives for collective honor. Even if America lacks aristocrats who seek honor for their family name, America herself has a name that can be burnished or tarnished by the actions of her representatives before the watching world. Advocating for the Senate's role in foreign policy, Madison states that "to merit" and "to obtain [the world's] respect and confidence," American proposals "should appear to other nations as the offspring of a wise and honorable policy."<sup>86</sup> This is the positive aspect: an honorable foreign policy will accrue honor. Jay raises the negative consideration: a disunited America incapable of paying back its debts would win only shame from foreign powers: "What a poor, pitiful failure will America make in their eyes! How liable would she become not only to their contempt, but to their outrage."<sup>87</sup> Here accruing honor conduces to security.

Therefore, although they follow Montesquieu very closely on the federative republic, the American Federalists deliberately depart from him on honor and representation. Their theory of divided and limited government attempts to transpose Montesquieu's counsel for a moderate monarchy into a commercial republic. The result is that the government's branches reflect elements of the classic mixed regime—with a monarchical presidency, aristocratic Senate and judiciary, and a democratic House of Representatives—but detached from social orders. The constitutional architecture forms a kind of plumbing system that channels the undifferentiated water of the popular will into a series of pipes that spin a complex and often competing set of turbines. *Federalist* #51 itself suggests this plumbing metaphor, saying that each branch must be as independent of the others as possible, so that "all the appointments for the supreme executive, legislative, and judicial magistracies should be drawn from the same *fountain*

<sup>84</sup>Paul Rahe, "Montesquieu, Hume, Adam Smith, and the Philosophical Perspective of the Federalist," in Jack Rakove and Colleen Sheehan, eds., *The Cambridge Companion to the Federalist* (Cambridge, 2020), 228–62, argues that Publius was primarily interested in Montesquieu on federalism but paid attention to officials' "sense of their own stature." Ibid., 247.

<sup>85</sup>*Federalist Papers*, #70.

<sup>86</sup>*Federalist Papers*, #63.

<sup>87</sup>*Federalist Papers*, #4.

of authority, the people, through *channels* having no communication whatever with one another” (original emphasis). Does the hydraulic constitutional apparatus have within itself the resources to address the deeper questions that reading Montesquieu in their commercial republic today raises? State capture by corporate oligarchs, demagogues inflaming mobs to cement executive power, or a hopeless legislative deadlock provoked by legislators seeking honor only from their fellow partisans all seem no longer potential but actual.

### Adams versus Madison

John Adams stands out as the eighteenth-century American reader of Montesquieu most attuned to the causes of division between elites and people.<sup>88</sup> He had a lifelong interest in Montesquieu, apparent from his annotations as a twenty-three-year-old on a freshly published copy of Nugent’s translation up until his late letters.<sup>89</sup> These early annotations reflect particular interest in Books III, VIII, and XI, stressing passages on republican virtue and the fearful character of despotism, and noting Montesquieu’s myriad historical examples.<sup>90</sup> Later, especially during the War of Independence, Adams’s mentions of Montesquieu focus on the relationship between the dynamics of regimes and the movements of the soul more than on institutional design.<sup>91</sup> John Adams, in January 1776, affirms the causal link between the regime and culture—“It is the Form of Government, which gives the decisive Colour to the Manners of the People, more than any other Thing”—but also saw social conditions as influencing the success or failure of the regime. America’s commercial nature created vulnerabilities:

Virtue and Simplicity of Manners, are indispensably necessary in a Republic, among all orders and Degrees of Men. But there is So much Rascallity, so much Venality and Corruption, so much Avarice and Ambition, such a Rage for Profit

<sup>88</sup>For an overview of John Adams’s political thought see C. Bradley Thompson, *John Adams and the Spirit of Liberty* (Lawrence, 1998). Green has argued that Adams’s inductive method should be understood as essentially derived from Montesquieu. Jonathan Green, “John Adams’s Montesquieuan Moment: Enlightened Historicism in the *Discourses on Davila*,” *Journal of the History of Ideas* 77/2 (2016), 227–51.

<sup>89</sup>See *Diary of John Adams*, vol. 1, 1755–1760, ed. L. H. Butterfield (Cambridge, MA, 1962): “1760. June 26. Thursday [sic]: “I have hit upon a Project that will secure my Attention to [*The Spirit of the Laws*], which is to write in the Margin, a sort of Index to every Paragraph.” See also “[Summer 1759].”

<sup>90</sup>Charles Secondat, Baron de Montesquieu, *The Spirit of laws, Translated from the French of M. De Secondat, Baron De Montesquieu, by Mr. Nugent* (London, 1752), Special Colls. John Adams Annotated Books, Massachusetts Historical Society. Adams leaves the sections on honor in Bk V unmarked, but notes on III.8, “Honor and despotism incompatible.” In general, Adams’s annotations here form a sparse personal index to the themes of the work, very different from the excoriating counterpoint marginalia on works by Condorcet and others. Compare Zoltán Haraszti, “John Adams Flays a Philosophe: Annotations on Condorcet’s *Progress of the Human Mind*,” *William and Mary Quarterly* 7/2 (1950), 223–54.

<sup>91</sup>Richard Samuelson has catalogued Adams’s concern for the effects of law on the soul in “John Adams and the Republic of Laws,” in Bryan-Paul Frost and Jeffrey Sikkenga, eds., *History of American Political Thought* (Lanham, 2003), 114–31.

and Commerce among all Ranks and Degrees of Men even in America, that I sometimes doubt whether there is public Virtue enough to support a Republic.<sup>92</sup>

In March 1776, Adams dismisses Montesquieu's claim that fear is the basis of despotic government because it "is so sordid and brutal a Passion that it cannot properly be called a Principle." He affirms honor's real but limited value, hoping to cabin its influence in America. "Honour, is a Principle which ought to be Sacred: But ... Honour at most is but a Part of Virtue, and therefore a feeblor Basis of Government."<sup>93</sup> Adams's *Thoughts on Government* notes that "the possible combinations of the powers of society, are capable of innumerable variation" and argues against concentrating all power in one assembly.<sup>94</sup> In two 1783 letters to Abigail from Paris, Adams invokes *The Spirit of the Laws*' analysis of honor to complain that Congress was undermining his own honor in the eyes of the French court.<sup>95</sup>

During the ratification debates and Washington's first term, Adams shows a new interest in Montesquieu on constitutional design. He criticizes readings of Montesquieu that interpret him as prescribing a full separation of powers in all the officers: "His doctrine of a Separation of the Executive from the Legislative is very just and very important, if confined to the Departments but is much otherwise, when extended to all the Individuals. Separation is necessary, only So far as to Secure the Independence of each."<sup>96</sup> Also in the summer of 1789, Adams included Montesquieu in a catalog of "Legislators" who had sought a "Guardian of the Laws" and averred that "Every Project has been found to be no better, than committing the Lamb to the Custody of the Wolf, excepting that one, which is called A ballance of Power."<sup>97</sup> He

<sup>92</sup> Adams concluded the letter by calling for a Lycurgan legislator "to make the Character of his People; to extinguish among them, the Follies and Vices that he sees, and to create in them the Virtues and Abilities which he sees wanting. I wish I was sure that America has one such Politician, but I fear she has not." John Adams, "To Mercy Otis Warren," 8 Jan. 1776, in *Papers of John Adams*, vol. 3, Adams Papers Digital Edition, Massachusetts Historical Society, at [www.masshist.org/publications/adams-papers/index.php/view/PJA03d252](http://www.masshist.org/publications/adams-papers/index.php/view/PJA03d252).

<sup>93</sup> John Adams, "To John Penn," 27 March 1776, in *Papers of John Adams*, vol. 3, Adams Papers Digital Edition, Massachusetts Historical Society, at [www.masshist.org/publications/adams-papers/index.php/view/PJA04d039](http://www.masshist.org/publications/adams-papers/index.php/view/PJA04d039).

<sup>94</sup> John Adams, *Thoughts on Government, Applicable to the Present State of the American Colonies* (1776), in *John Adams: Revolutionary Writings, 1755–1783*, ed. Gordon S. Wood (New York, 2011). As Wood notes, "By powers of society, Adams meant what Europeans called estates." Gordon S. Wood, *Power and Liberty: Constitutionalism in the American Revolution* (Oxford, 2021), 35.

<sup>95</sup> These letters quote Montesquieu in French; the first from SL III.5 on the lack of virtue in monarchies as shown by the vanity of courtiers, and the other from SL IV.2's discussion of the rules of honor. "John Adams to Abigail Adams," II and III, 27 Feb. 1783, in *Adams Family Correspondence*, vol. 5, Adams Papers Digital Edition, Massachusetts Historical Society, at [www.masshist.org/publications/adams-papers/index.php/view/ADMS-04-05-02-0057](http://www.masshist.org/publications/adams-papers/index.php/view/ADMS-04-05-02-0057) and [www.masshist.org/publications/adams-papers/index.php/view/ADMS-04-05-02-0058](http://www.masshist.org/publications/adams-papers/index.php/view/ADMS-04-05-02-0058).

<sup>96</sup> John Adams, "To Richard Peters," 5 June 1789, in *Papers of John Adams*, vol. 20, Adams Papers Digital Edition, Massachusetts Historical Society, at [www.masshist.org/publications/adams-papers/index.php/view/ADMS-06-20-02-0005](http://www.masshist.org/publications/adams-papers/index.php/view/ADMS-06-20-02-0005).

<sup>97</sup> John Adams, "To Roger Sherman," 18 July 1789, in *Papers of John Adams*, vol. 20, Adams Papers Digital Edition, Massachusetts Historical Society, at [www.masshist.org/publications/adams-papers/index.php/view/ADMS-06-20-02-0055](http://www.masshist.org/publications/adams-papers/index.php/view/ADMS-06-20-02-0055).

also ranks his work with Montesquieu's, reporting "Compliments [on his *Defence of the Constitutions*] that the Science of Government has not been so much improved Since the Writings of Montesquieu."<sup>98</sup> Jonathan Green has shown that even between the *Defence of the Constitutions* and the *Discourses on Davila*, penned in 1790 during the French Revolution, Adams became more Montesquieuian, concerned with whether "a nation's legal constitution matches the organic constitution of its citizens," granting it the prerequisites for republican liberty.<sup>99</sup> He therefore joined the effort to distinguish national characters and to identify France's "ancient constitution."

The 1786–7 *Defence of the Constitutions* represents Adams's most thorough account of political principles. Even though his engagement with Montesquieu would continue to develop after this work, the *Defence* distills Adams's Montesquieuian quest for moderate government. Adams offers an ambitious history and diagnosis of all past efforts to build republics through the paradigm of the one, the few, and the many. The influential few, whether formally titled or not, can corrupt republics in multiple directions. They have deceived or suborned the many into yielding them power (as at Geneva), or they could undermine the executive authority of the one (as in the case of the Polish *liberum veto*).<sup>100</sup> Adams holds it to be naive to think that elections provide enough of an accountability mechanism to control representatives. Assuming that the passionate loyalties stirred up in an election campaign could suddenly give way to a skeptical, scrutinizing attitude once the candidates take office "rested on the contradictory expectations that the people would be deferential one moment and vigilant the next," able "to set aside their admiration and affection for their elected representatives."<sup>101</sup> Adams's suspicion of elites therefore does not lead him to be sanguine about the virtue or prudence of the many.

How, then, does Adams hope to counterbalance the threat that elites pose without overcorrecting? Echoing *Federalist* #51 but staying closer to the original context of *SL* XI.4, he writes that "orders of men, watching and balancing each other, are the only security; power must be opposed to power, and interest to interest."<sup>102</sup> To that end, he proposed elite "ostracism" into a distinct organ, proposing a Senate to both represent and confine the natural aristocracy: "The rich, the well-born, and the able, acquire an

<sup>98</sup> John Adams to François Adriaan van der Kempt, 27 Feb. 1790, in *Papers of John Adams*, vol. 20, Adams Papers Digital Edition, Massachusetts Historical Society, at [www.masshist.org/publications/adams-papers/index.php/view/ADMS-06-20-02-0156#sn=21](http://www.masshist.org/publications/adams-papers/index.php/view/ADMS-06-20-02-0156#sn=21). John Adams, "To Thomas Boylston Adams," 3 Dec. 1791, in *Adams Family Correspondence*, vol. 9, Adams Papers Digital Edition, Massachusetts Historical Society, at [www.masshist.org/publications/adams-papers/index.php/view/ADMS-04-09-02-0134#sn=22](http://www.masshist.org/publications/adams-papers/index.php/view/ADMS-04-09-02-0134#sn=22).

<sup>99</sup> Green, "John Adams's Montesquieuian Moment," 247.

<sup>100</sup> Geneva is treated in John Adams, *A Defence of the Constitutions of Government of the United States of America*, vol. 1, 3rd edn (Philadelphia, 1797), 52–56. Adams emphasizes, "The history of this city deserves to be studied with anxious attention by every American citizen. The principles of government, the necessity of various orders, and the fatal effects of an imperfect balance, appear nowhere in a stronger light." *Ibid.*, 52–3. Of the weakness of the executive to protect Poland from the partitions (*ibid.*, 72–90), Adams says, "No people, no king, and no king, no people." *Ibid.*, 87.

<sup>101</sup> As Luke Mayville has summarized in "Fear of the Few: John Adams and the Power Elite," *Polity* 47/1 (2015), 5–32, at 26. Mayville develops the argument in *John Adams and the Fear of American Oligarchy* (Princeton, 2016).

<sup>102</sup> Adams, *A Defence*, 323.

influence among the people that will soon be too much for simple honesty and plain sense, in a house of representatives. The most illustrious of them must, therefore, be separated from the mass, and placed by themselves in a senate."<sup>103</sup> Adams here proposes a kind of quarantine, more humane than the Athenian custom of censuring potential tyrants by exile. By defining and publicly recognizing the privileges of these aristocrats, Adams believes they can be curbed, rendering the system more honest than one where the wealthy exercise an unacknowledged influence behind the scenes. He justifies this senatorial solution not only negatively, as a way of containing aristocrats' influence and preventing them from carrying popular elections by their charisma, but also as a way of rendering their qualities useful to the people. In a very Montesquieuian move, he aims to achieve this by appealing to their desire for honor. Thinking particularly of repeated instances of a member winning promotion from the Commons to the Lords, Adams writes that the British Constitution shows how "the senate becomes the great object of ambition; and the richest and the most sagacious wish to merit an advancement to it by services to the public in the house."<sup>104</sup> As a result of these well-aligned incentives, "When [the ambitious one] has attained the object of his wishes, you may still hope for the benefits of his exertions, without dreading his passions."<sup>105</sup> This is not just bridling the great but harnessing them, because the lowly have need of the talents, intellect, and ambition for honor of the great. Adams's entire constitutional theory in fact depends upon this idea of honor as a natural motive, duly rewarded by formalities that dignify offices. The executive therefore must be not just powerful enough to restrain elites, but also visibly awe-inspiring.

Although the *Defence* makes several overt criticisms of Montesquieu, both questioning his bona fides as a republican ("[Turgot's] countryman Montesquieu, who will scarcely be denominated a republican writer ...") and accusing him of having plagiarized Machiavelli, the entire argument builds on Montesquieu's account of representation.<sup>106</sup> Adams's prescription for the United States relies on Montesquieu's interpretation of the British Constitution as a mixed regime based on a society of orders; he copies the essential passage, the first third of SL XI.6, verbatim into the *Defence*.<sup>107</sup> The entire *Defence of the Constitutions* responds to Turgot's provocation that Americans have preserved too much of the English aristocratic ways by retaining bicameral legislatures and strong executives. Yet Adams concludes the first section of his sprawling book by noting that American constitutions do not represent social orders: "In America, there are different orders of *offices*, but none of *men*. Out of office, all men are of the same species, and of one blood; there is neither a greater nor a lesser nobility."<sup>108</sup> Adams is not simply celebrating this similitude; he suggests that the apparent lack of orders has the consequence of obscuring the inescapable reality of elite-popular tension in politics. America's character—an agrarian society extended across a vast territory—has thus far tamped down this dynamic, yet class conflict will

<sup>103</sup>Ibid., "Preface," xi.

<sup>104</sup>Ibid.

<sup>105</sup>Ibid.

<sup>106</sup>Ibid., 124, 325.

<sup>107</sup>Ibid., 153–8.

<sup>108</sup>Ibid., 93, original emphasis.

become apparent as the country grows and prospers. The first volume, published in January 1787 in time for the Constitutional Convention, concludes with this verdict: “All nations, under all governments, must have parties; the great secret is to control them. There are but two ways, either by a monarchy and standing army, or by a balance in the constitution.”<sup>109</sup> This balance would require acknowledging the orders, giving them each a recognized and circumscribed place in government, and channeling their particular interests towards the common good.

In the ratification-era debates about constitutionalism, Madison gave the most thorough defense of Publius’s position against Adams. *Federalist* #51 (published on 8 February 1788 with knowledge of at least parts of the *Defence of the Constitutions*), concedes that parties are perennial and must be restrained, but Madison takes the possible solutions to be quite different. “To guard one part of the society against the injustice of the other part” can be accomplished either by “creating a will in the community independent of the majority,” the monarchical solution, or by multiplying and dividing interests across the federal system and a large territory, which Madison prefers as congruent with “the republican cause.”<sup>110</sup> Madison worries more about royal tyranny and popular willfulness than about elite ambition.<sup>111</sup> He returns to the question in a series of 1792 essays for the *National Gazette*, the Party Press essays.<sup>112</sup> One essay stages a dialogue entitled “Who Are the Best Keepers of the People’s Liberties” to mock Adams for his interest in establishing a one and a few independent of the people.

Anti-Republican: ... The more you make government independent and hostile towards the people, the better security you provide for their rights and interests. Hence the wisdom of the theory, which, after limiting the share of the people to a third of the government, and lessening the influence of that share by the mode and term of delegating it, establishes two grand hereditary orders, with feelings, habits, interests, and prerogatives all inveterately hostile to the rights and interests of the people, yet by a *mysterious* operation all combining to fortify the people in both.

Republican: ... But mysteries belong to religion, not to government; to the ways of the Almighty, not to the works of man.<sup>113</sup>

Madison is quick to dismiss the idea that a more complex unity of different and apparently opposed elements can be more truly unified and to the benefit of each element than a simple unity, relegating the category of mystery only to those supernatural secrets which “the dimness of human sight” has not yet penetrated. But the unity

<sup>109</sup>Ibid., 382.

<sup>110</sup>*Federalist Papers*, #51, original emphasis.

<sup>111</sup>For a thorough discussion of Madison’s view on this question see Eric Nelson, “Publius on Monarchy,” in Rakove and Sheehan, *The Cambridge Companion to the Federalist*, 426–63.

<sup>112</sup>Colleen Sheehan, *James Madison and the Spirit of Republican Self-Government* (Cambridge, 2009), 39, notes the deliberate parallels to Adams’s language in Madison’s essay.

<sup>113</sup>James Madison, “For the National Gazette, 20 December 1792,” in *The Papers of James Madison*, vol. 14, 6 April 1791–16 March 1793, ed. Robert A. Rutland and Thomas A. Mason (Charlottesville, 1983), 426–7, original emphasis.

of a human being, a composite of many organs sharing a common good, exemplifies precisely the kind of coordination Adams called for.<sup>114</sup> Although Lamberti has called Madison “Montesquieu’s best disciple,” Adams’s accounts of complex unity and representation are certainly closer to Montesquieu’s than Madison’s functionalist transposition is.<sup>115</sup> Although America lacked the ingredients for hereditary orders, and despite the great success of the Madisonian system over time, Adams’s more orthodox Montesquieuianism continues to provide insight into the promise and peril of America.

For Adams goes even further than Montesquieu’s apparent conventionalism about honor to insist that an element of hierarchy arises in every society and so every regime must find a way to channel it well. The *Discourses on Davila* conclude with a meditation on the significance of “emulation,” which “God and nature have implanted in the human heart for the wisest and best purposes.”<sup>116</sup> If “emulation between individuals, and rivalries among families never can be prevented,” then those individuals and families “ought not to be prevented [from emulating one another], but directed to virtue, and then stimulated and encouraged by generous applause and honorable rewards.”<sup>117</sup> In his late correspondence with Thomas Jefferson, Adams repeats that the distinction between an identifiable few and many is inscribed in “the Constitution of human nature.”<sup>118</sup> He defines these few more subtly than simply as the wealthy or the owners of large estates. They are also not the “natural aristocracy” in Jefferson’s sense, meaning those in fact talented or virtuous, because family name, beauty, and talent are persistent sources of inequality.<sup>119</sup> Even ambition is not evenly distributed among human beings, with some hungering more than others to distinguish themselves and win glory. Thus there is inevitably something called “aristocratical influence” among those able to draw the eye, and ultimately to command the votes, of others.<sup>120</sup> This emphasis on the good and bad of mimesis, or what Adams calls “emulation,” develops the implications of Montesquieu’s theory of honor further than Montesquieu himself goes. If Adams is right that human nature is a constant, and that there is “no special providence for Americans,” we should not be surprised to see the desire for distinction recurring in American politics as competing elite factions vie to win the trust of the people.<sup>121</sup>

<sup>114</sup>In *Federalist* #37, Madison laments that the elements of a human being and of government are both obscure: “The faculties of the mind itself have never yet been distinguished and defined with satisfactory precision”; “No skill in the science of government has yet been able to discriminate and define, with sufficient certainty, its three great provinces.”

<sup>115</sup>Lamberti, “Montesquieu in America,” 204.

<sup>116</sup>John Adams, *The Works of John Adams*, vol. 6, ed. Charles Francis Adams (Boston, 1851), *Discourses on Davila*, Discourse XXXI.

<sup>117</sup>*Ibid.*

<sup>118</sup>John Adams to Thomas Jefferson, 14 Aug. 1813, in Lester Cappon, ed., *The Adams–Jefferson Letters: The Complete Correspondence between Thomas Jefferson and Abigail and John Adams* (Chapel Hill, 1987), 365.

<sup>119</sup>Thomas Jefferson to John Adams, 28 Oct. 1813, in Cappon, *The Adams–Jefferson Letters*, 388.

<sup>120</sup>John Adams to Thomas Jefferson, 15 Nov. 1813, in Cappon, *The Adams–Jefferson Letters*, 398.

<sup>121</sup>Adams, *A Defence*, 121.

### Conclusion: competing Montesquieuian lenses on the American present

Adams and Publius offer alternative American receptions of Montesquieu's constitutionalism. While both accept Montesquieu's call for countervailing powers to balance one another, they diverge on whether these competing powers represent competing groupings in society or are simply an artificial division drawn from a society essentially uniform. Madison, Hamilton, and Jay did not read Montesquieu badly, but made use of him for their own purposes at the risk of minimizing his core psychosocial insights. Since the Senate set aside for great estates that Adams seemed to call for would have been alien to the American commercial republic with its many small landholders, Publius's creative transposition may have been fitting.<sup>122</sup> Montesquieu himself licenses such a creative adaptation: "The government most in conformity with nature is the one whose particular arrangement best relates to the disposition of the people for whom it is established."<sup>123</sup> He does not make his prescriptions for liberty in France dependent on having a legislative upper house to represent the nobility, as he commended in England. Instead of pinning his hopes for moderation on the Estates General, Montesquieu points to the *parlements* as the true bastions of aristocratic liberty within the French constitutional tradition.<sup>124</sup>

But Adams's understanding of the spirit of Montesquieu remains instructive: it enables a deeper analysis of historical and contemporary American class dynamics than does Hamilton's. The nineteenth-century explosion of industry, the twentieth-century rise of white-collar professions, and the continuing rise of the information economy have rendered Hamilton's assumption that economic interests will converge doubtful. Montesquieu was aware that commerce needed legal, moral, and cultural constraints to prevent its becoming despotic; the author of *SL* II.4's condemnation of John Law (as "one of greatest promoters of despotisms") and *SL* XV.1's mockery of slavery ("It is not good by its nature; it is useful neither to the master nor to the slave") would have been slow to believe that a financial disincentive would suffice to end the ownership of human beings.<sup>125</sup> Furthermore, Adams's theory serves not only to put us on our guard about the potential for elites to corrupt the republic into oligarchy. It also allows us, with Montesquieu, to reflect on the potentially positive role that elites' quest for honor can play.<sup>126</sup> If Adams and Montesquieu are right, then the desire to be distinguished and the admiration for distinction in others are both indelible. For

<sup>122</sup>Wood has made the classic argument that Adams's theoretical brilliance was simply out of touch with the social realities and intellectual trends of the young United States. See Gordon Wood, *The Creation of the American Republic* (Chapel Hill, 1969), "The Relevance and Irrelevance of John Adams," 565–92.

<sup>123</sup>*SL* I.3.

<sup>124</sup>See his definition in *SL* II.4: "It is not enough to have intermediate ranks in a monarchy; there must also be a deposit of laws." The history of French law in *SL* XXVIII highlights Louis IX's and Charles VII's development of the *parlements* (XXVIII.39 and 45).

<sup>125</sup>James Wilson reports that the Constitutional Convention planned to gradually end slavery by initially taxing and then banning the importation of new slaves. See Jonathan Elliot, ed., *The Debates in the Several State Conventions on the Adoption of the Federal Constitution as Recommended by the General Convention at Philadelphia in 1787* ..., 2nd edn, 5 vols. (New York, 1888), 2: 451–3.

<sup>126</sup>An example of thinking along these lines is Richard Avramenko and Brienne Wolf, "Disciplining the Rich: Tocqueville on Philanthropy and Privilege," *Review of Politics* 83 (2021), 351–74. The authors develop a Tocquevillian theory of a properly functioning elite.

Montesquieu does not teach that seeking honor is entirely vainglorious or arbitrary: The *Pensées* insist that the desire for honor is “imprinted on our souls” by “the greatest of all workmen,” God, and enjoins his son that that “noble ambition is a sentiment useful to society when it is well directed.”<sup>127</sup> Adams similarly warns Jefferson that a purely rational meritocracy of intellect is impossible, because “Birth Fortune, Figure, Eloquence, Science learning, Craft Cunning, or even his Character for good fellowship and a bon vivant” are just a few of the qualities that incline others to follow where one leads.<sup>128</sup> Montesquieu’s world assumed an explicit hierarchy of honors. Even in our democratic world, where hierarchy is suspect by default, wise political design and healthy social norms would heed the anonymous Troglodyte and consider how to harness the human impulse for distinction for good while bridling its potential for evil.

**Acknowledgments.** I am grateful to Céline Spector for teaching me to see past the surface of *The Spirit of the Laws*; to Matthew Landauer for introducing me to John Adams; to Constantine Vassiliou, Richard Samuelson, and Hugo Toudic for their advice on drafts; to Emily-Weston Kannon for editorial assistance; and to Paul Cheney and Pierre Manent for their encouragement.

<sup>127</sup> Montesquieu, *My Thoughts*, #5.

<sup>128</sup> Adams to Jefferson, 15 Nov. 1813, in Cappon, *The Adams–Jefferson Letters*, 398.

**Cite this article:** Luke Foster, “Montesquieu’s Case for Honor in Publius and Adams: Transposing the Society of Orders to the Commercial Republic” *Modern Intellectual History* 23 (2026), 23–47. <https://doi.org/10.1017/S1479244325100036>